

MYNTRA: TERMS OF USE

Disclaimer

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Welcome to Myntra. This document is an electronic record in terms of Information Technology Act, 2000 and published in accordance with the provisions of Rule 3) of the Information Technology (Intermediaries guidelines) Rules, 2011 that require publishing the rules and regulations, privacy policy and Terms of Use for access or usage of Myntra marketplace platform - www.myntra.com (hereinafter referred to as "Platform")

The Platform is owned by Myntra Designs Private Limited, having its registered office at Buildings Alyssa, Begonia and Clover situated in Embassy Tech Village, Outer Ring Road, Devarabeesanahalli Village, Varthur Hobli, Bengaluru – 560103, India and its branch office at Plot 82 A - 2nd and 3rd Floor, Sector 18 Gurugram Haryana, India.

Your use of the Myntra and services and tools are governed by the following terms and conditions ("Terms of Use") as applicable to the Myntra including the applicable policies which are incorporated herein by way of reference. By mere use of the Myntra, You shall be contracting with Myntra Designs Private Limited, the owner of the Platform. These terms and conditions including the policies constitute Your binding obligations, with Myntra.

For the purpose of these Terms of Use, wherever the context so requires "You" or "User" shall mean any natural or legal person who has agreed to become a buyer on Platform by providing data while registering on the Platform as Registered User. The term "Myntra", "We", "Us", "Our" shall mean Myntra Designs Private Limited and its affiliates.

When You use any of the services provided by Us through the Platform, including but not limited to, (e.g. Product Reviews, Seller Reviews), You will be subject to the rules, guidelines, policies, terms, and conditions applicable to such service, and they shall be deemed to be incorporated into this Terms of Use and shall be considered as part and parcel of this Terms of Use. We reserve the right, at Our sole discretion, to change, modify, add or remove portions of these Terms of Use, at any time without any prior written notice to You. You shall ensure to review these Terms of Use periodically for updates/changes. Your continued use of the Platform following the posting of changes will mean that You accept and agree to the revisions. As long as You comply with these Terms of Use, We grant You a personal, non-exclusive, non-transferable, limited privilege to enter and use the Platform. By impliedly or expressly accepting these Terms of Use, You also accept and agree to be bound by Myntra Policies including but not limited to Privacy Policy as amended from time to time

Services Offered:

Myntra provides a number of Internet-based services through the Platform. One such Service enables Users to purchase original merchandise such as clothing, footwear and accessories from various fashion and lifestyle brands (collectively, "Products"). The Products can be purchased through the Platform through various methods of payments offered. The sale/purchase of Products shall be additionally governed by specific policies of sale, like cancellation policy, exchange policy, return policy, etc. (which are found on the FAQ tab on the Platform and all of which are incorporated here by reference). It is clarified that at the time of creating a return request, users are required to

confirm (via a check box click) that the product being returned is unused and has the original tags intact. If the product returned by the user is used, damaged or if the original tags are missing, the user's return request shall be declined, and the said product shall be re-shipped back to the customer. In the event that the return request is declined, the user shall not be eligible for a refund, and Myntra assumes no liability in this regard. Further, in the event that the user fails to accept the receipt of the said re-shipped product, the user shall continue to be not eligible for a refund, and Myntra assumes no liability with respect to the return or refund for the said re-shipped product. In addition, these Terms of Use may be further supplemented by Product specific conditions, which may be displayed with that Product.

Myntra does not warrant that Product description or other content on the Platform is accurate, complete, reliable, current, or error-free and assumes no liability in this regard

4. User Conduct and Rules on the Platform:

You agree, undertake and confirm that Your use of the Platform shall be strictly governed by the following binding principles:

- You shall not host, display, upload, modify, publish, transmit, update or share any information which:
 - belongs to another person and to which You do not have any right to
 - is grossly harmful, harassing, blasphemous, defamatory, obscene, pornographic, paedophilic, libellous, invasive of another's privacy, hateful, or racially, ethnically objectionable, disparaging, relating or encouraging money laundering or gambling, or otherwise unlawful in any manner whatever
 - is misleading in any way
 - involves the transmission of "junk mail", "chain letters", or unsolicited mass mailing or "spamming"
 - promotes illegal activities or conduct that is abusive, threatening, obscene, defamatory or libellous
 - infringes upon or violates any third party's rights including, but not limited to, intellectual property rights, rights of privacy (including without limitation unauthorized disclosure of a person's name, email address, physical address or phone number) or rights of publicity
 - contains restricted or password-only access pages, or hidden pages or images (those not linked to or from another accessible page)
 - provides instructional information about illegal activities such as making or buying illegal weapons, violating someone's privacy, or providing or creating computer viruses
 - contains video, photographs, or images of another person (with a minor or an adult).
 - tries to gain unauthorized access or exceeds the scope of authorized access to the Platform or to profiles, blogs, communities, account information, bulletins, friend request, or other areas of the Platform or solicits passwords or personal identifying information for commercial or unlawful purposes from other users

- interferes with another USER's use and enjoyment of the Platform or any other individual's User and enjoyment of similar services
- infringes any patent, trademark, copyright or other proprietary rights or third party's trade secrets or rights of publicity or privacy or shall not be fraudulent or involve the sale of counterfeit or stolen products
- violates any law for the time being in force
- threatens the unity, integrity, defence, security or sovereignty of India, friendly relations with foreign states, or public order or causes incitement to the commission of any cognizable offence or prevents investigation of any offence or is insulting any other nation
- shall not be false, inaccurate or misleading
- shall not create liability for Us or cause Us to lose (in whole or in part) the services of Our internet service provider ("ISPs") or other suppliers
- A User may be considered fraudulent or loss to business due to fraudulent activity if any of the following scenarios are met:
 - Users doesn't reply to the payment verification mail sent by Myntra
 - Users fails to produce adequate documents during the payment details verification
 - Misuse of another Users's phone/email
 - Users uses invalid address, email and phone no.
 - Overuse of a voucher code
 - Use of a special voucher not tagged to the email ID used.
 - Users returns the wrong product
 - Users refuses to pay for an order
 - Users involved in the snatch and run of any order
 - Miscellaneous activities conducted with the sole intention to cause loss to business/revenue to Myntra
 - User with excessive returns
 - Repeated request for monetary compensation for fake/used order
- Myntra may cancel any order that classify as 'Bulk Orders'/'Fraud orders' under certain criteria at any stage of the product delivery. An order can be classified as 'Bulk Order'/'Fraud Order' if it meets with the below mentioned criteria, and any additional criteria as defined by Myntra:
 - Products ordered are not for self-consumption but for commercial resale
 - Multiple orders placed for same product at the same address, depending on the product category.
 - Bulk quantity of the same product ordered

- Invalid address given in order details
 - Any malpractice used to place the order
 - Any promotional voucher used for placing the 'Bulk Order' may not be refunded
 - Any order placed using a technological glitch/loophole.
- Myntra does not facilitate business to business transaction between Sellers and business customers. You are advised to refrain from transacting on the Platform if You intend to avail the benefits of input tax credit.
 - You shall not use the Platform for any unlawful and fraudulent purposes, which may cause annoyance and inconvenience and abuses any policy and rules of the company and interrupt or causes to interrupt, damages the use by other Users of Myntra.
 - You shall not use any false e-mail address, impersonates any person or entity, or otherwise misleads Myntra by sharing multiple address and phone numbers or transacting with malafide intentions.
 - We on certain landing page even allow our Users to experience free exchange of ideas and observations regarding interest in the field of fashion, including 'viewing user generated content' and/or 'videos' and 'posting comments'. By accessing, viewing and/or posting any user generated content to any specific dedicated page on the Platform, you accept and consent to the practices described in these 'Terms of Service' and 'Privacy Policies', as well as any other terms of prescribed by the Myntra on the Platform. You agree and undertake that when accessing, viewing and/or posting any user generated content on these pages You will not imitate, abuse, harass, any Customer/User or violate and exploit, any of these 'Terms of Service' of the Platform.
 - You shall not use any "deep-link", "page-scrape", "robot", "spider" or other automatic device, program, algorithm or methodology, or any similar or equivalent manual process, to access, acquire, copy or monitor any portion of the Platform or any Content, or in any way reproduce or circumvent the navigational structure or presentation of the Platform or any Content, to obtain or attempt to obtain any materials, documents or information through any means not purposely made available through the Platform. We reserve Our right to bar any such activity.
 - You shall not attempt to gain unauthorized access to any portion or feature of the Platform, or any other systems or networks connected to the Platform or to any server, computer, network, or to any of the services offered on or through the Platform, by hacking, password "mining" or any other illegitimate means.
 - You may not pretend that You are, or that You represent, someone else, or impersonate any other individual or entity
 - You shall at all times ensure full compliance with the applicable provisions of the Information Technology Act, 2000 and rules thereunder as applicable and as amended from time to time and also all applicable Domestic laws, rules and regulations (including the provisions of any applicable Exchange Control Laws or Regulations in Force) and International Laws, Foreign Exchange Laws, Statutes, Ordinances and Regulations (including, but not limited to Sales Tax/VAT, Income Tax, Octroi, Service Tax, Central Excise, Custom Duty, Local Levies) regarding Your use of Our service and Your listing, purchase, solicitation of offers to purchase, and sale

of products or services. You shall not engage in any transaction in an item or service, which is prohibited by the provisions of any applicable law including exchange control laws or regulations for the time being in force.

- From time to time, You shall be responsible for providing information relating to the products or services proposed to be sold by You. In this connection, You undertake that all such information shall be accurate in all respects. You shall not exaggerate or over emphasize the attributes of such products or services so as to mislead other Users in any manner.
- You shall not engage in advertising to, or solicitation of, other Users of the Platform to buy or sell any products or services, including, but not limited to, products or services related to that being displayed on the Platform or related to us.
- The Content posted does not necessarily reflect Myntra views. In no event shall Myntra assume or have any responsibility or liability for any Content posted or for any claims, damages or losses resulting from use of Content and/or appearance of Content on the Platform. You hereby represent and warrant that You have all necessary rights in and to all Content which You provide and all information it contains and that such Content shall not infringe any proprietary or other rights of third parties or contain any libellous, tortious, or otherwise unlawful information.
- Maya is powered by ChatGPT from OpenAI and Microsoft. Maya may respond with inaccurate or insensitive information, exercise discretion and avoid sharing personal information.
- AI Generated Tags for review are powered by ChatGPT from OpenAI and Microsoft. Please go through the complete reviews by the users for detailed information.
- Myntra hereby disclaims any guarantees of exactness as to the finish, appearance, size, color etc., of the final Product as ordered by the User. Myntra Return & Exchange Policy offers you the option to return or exchange items purchased on Myntra within the return/exchange period (Please read the Product Detail Page to see the number of days upto which a product can be returned/exchanged, post-delivery). In case of return or exchange of the purchased item, please refer to the "Return and Exchange Policy" available on <https://www.myntra.com/faqs#returns>.
- Please note that you can only use Myntra Credits to buy products from your registered account on the Myntra app or website. Myntra Credits cannot be:
- Used for payment of orders placed on other Myntra accounts.
- Transferred to any other Myntra user's account, bank account, or wallets, etc.
- Myntra may unilaterally terminate Your account on any event as mentioned in the Terms Of Use under the point no. 4. User Conduct and Rules on the Platform. Any Myntra credits earned as goodwill compensation, earned via loyalty or referral program or promotional campaigns or earned through gift cards purchased on other platforms will be forfeited in such cases.

balance would be processed as a refund. Myntra reserves the right to modify the terms and conditions at any time, without prior notice..

6. Disclaimer of Warranties and Liability:

All the materials and products (including but not limited to software) and services, included on or otherwise made available to You through Platform are provided on "as is" and "as available" basis without any representation or warranties, express or implied except otherwise specified in writing. Without prejudice to the forgoing paragraph, Myntra does not warrant that: Platform will be constantly available, or available at all or The information on Platform is complete, true, accurate or non-misleading.

All the Products sold on Platform are governed by different state laws and if Seller is unable to deliver such Products due to implications of different state laws, Seller will return or will give credit for the amount (if any) received in advance by Seller from the sale of such Product that could not be delivered to You. You will be required to enter a valid phone number while placing an order on the Platform. By registering Your phone number with us, You consent to be contacted by Us via phone calls and/or SMS notifications, in case of any order or shipment or delivery related updates. We will not use your personal information to initiate any promotional phone calls or SMS